

Indra Dutt Pandey v. M.D., Purvanchal Vidyut Vitran Nigam Ltd.

Allahabad High Court · Division Bench · 8 July 2013 · WRIT - C No. 36045 of 2013 · **Writ dismissed; consumer relegated to clause 6.5 complaint**

HEADNOTE

A consumer seeking quashing of an electricity bill that allegedly included arrears of more than two years was relegated to a complaint under clause 6.5 of the U.P. Electricity Supply Code, 2005. The writ was dismissed without examining the bill on merits, the Court holding that an appropriate statutory remedy was available.

FACTUAL SUMMARY

Indra Dutt Pandey filed a writ in the Allahabad High Court seeking quashing of an electricity bill dated 7 March 2013 issued by Purvanchal Vidyut Vitran Nigam Ltd. He alleged the bill was wrongly issued and that arrears of more than two years had been included. The licensee opposed the petition, submitting that the consumer's remedy was a complaint under clause 6.5 of the U.P. Electricity Supply Code, 2005. The Division Bench heard both sides on 8 July 2013.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

billing complaint as alternative to writ

HOLDING

Where a consumer seeks quashing of an electricity bill, including on the ground that arrears of more than two years have been included, and a complaint under clause 6.5 of the U.P. Electricity Supply Code, 2005 is available, the writ petition will be dismissed and the consumer left to file that complaint. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE BILL DATED 7.3.2013 WAS WRONGLY ISSUED, AND WHETHER ARREARS OF MORE THAN TWO YEARS COULD BE INCLUDED IN IT

Merits of the bill left to the clause 6.5 complaint ¶ 1